

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.

2. M-CV-0085478 LININGER, THOMAS v. MALEK, MANASA

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Cross-Defendant Manassa Malek's Motion to Determine Reasonable Medical Charges and Release Interpleaded Funds

All moving papers must be served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) This timeline is extended depending upon the method of service. (*See generally id.*) There is no proof of service in the file demonstrating cross-complainant Nadine Yassa has been served with the motion. Accordingly, cross-defendant's motion is denied without prejudice.

The court also observes there are no case management conference or trial date set. The court on its own motion sets a case management conference for July 27, 2026, at 3:00 p.m. in Department 40. The court directs the clerk of court to provide notice to cross-complainant Nadine Yassa and cross-defendant Manassa Malek of the case management conference.

3. M-CV-0094796 CAPITAL ONE, N.A. v. JORDAN, MICHAEL

If oral argument is requested, it shall be heard on **May 7, 2026, at 8:30 a.m. in Department 3.**

Defendant's Motion to Compel Arbitration and Stay Proceedings

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the

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FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then "bears the burden of proving by a preponderance of the evidence any fact necessary to its defense" including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) "[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit." (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets its initial burden that an agreement to arbitrate exists between plaintiff and defendant that involves interstate commerce. As such, the burden shifts to plaintiff.

Plaintiff does not oppose the motion to compel arbitration and thus does not meet its burden to establish any defenses.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant's motion to compel arbitration is granted. The action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on **Monday, October 19, 2026, at 3:30 p.m. in Department 40.**

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